
School Visit Report**Audit Date: 28/01/2020****Report: Year 2 visit 2****DPE: Stuart Lee****School member: Trudi Sharred**

1. Visit details

In addition to the audit walk, key GDPR documentation was reviewed and DPE best practice areas were discussed/demonstrated with the school. The school will be joining the **Yare Education Trust** in May 2020.

The school building is owned by KIER as part of a Private Finance Initiative (PFI) so is more likely to have contractors and staff not known to the school on site.

The school has now completed its lone working policy. It was suggested the school would benefit from DPEs work away from home policy and this was downloaded during the visit.

Priorities from the visit are detailed below with full details in the main report:

- Privacy Statement – add appendix, completed during visit - refer to section 3 for third party list;
- GDPR Policy – ensure CCTV section is adequate and KIER Policy is accessible. School to follow this up with KIER. KIER sent log and procedure during visit. School to cross reference with DPE best practice documentation and send to DPE for review as required;
- Data breach Procedure – downloaded during visit, school to disseminate to all staff;
- SAR Procedure – downloaded during visit, school to ensure key staff understand what a SAR is and how to report a SAR. A SAR was logged during the visit. **SL to follow up with Charan to contact – actioned;**
- School to consider a work away from school policy;
- Staff training – Ensure key staff have completed DPE online modules i.e. SENCO – school to follow up.

2. Audit walk findings

Good GDPR compliance practice observed during the walk and when talking to staff. Each classroom has lockable storage; forename only adopted for lists and displays; electronic systems utilised for sharing and storing sensitive data and staff spoken to were aware of their responsibilities. Main action points from the walk are detailed below:

SEND office:

Currently in transition with new member of staff taking over. Items observed:

- Behaviour reports
- Occupational Health reports
- Intervention/catch up folders

Action point:

- Raise staff awareness and ensure staff member completes DPE e-learning training;
- Add secure files/folders to available secure storage.

RSRB room

Items observed:

- 1 x cabinet with key in that contained sensitive data.
- 1 x unlocked laptop.

Action points:

- Reminder to staff and raise staff awareness/training

Medical room

- Still to action and decide on best method for storing accident book/medical information.

Technical equipment

- Laptops left out and laptop trolleys not locked.

Action point:

- Reminder to staff to secure equipment (end of day routines).

3. Compliance actions that should now be completed

Initial documents:

- **Privacy Notice**
- **GDPR Policy**
- **Data Breach Procedure.**
- **SAR procedure**
- **Photo and Video consent**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee/James England, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant – **Appendix list below:**
- **Appendix 1**
- After school club provisions – Community Sports Foundation, ESKA Karate, The Garage, Tamion Unlimited
- Appear
- Charanga (website)
- Class Dojo
- CPOMS/Safeguarding
- Cole photography (school photos)
- NORSE (caterers)
- Espresso
- Google
- Junior Librarian (library software system)
- NHS and health professionals (including CEPP, Speech therapy)
- Perspective Light (Angel solutions)
- Phonics Tracker (website)?
- Pupil Asset - Management Information System
- Spelling Shed
- Times Table Rock Stars (website and APP)
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5.1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>